**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**AHMEDABAD**
**DIVISION BENCH**
**COURT – 1**

ITEM No.301- C.P.(CAA)/47(AHM)2022 in
C.A.(CAA)/39(AHM)2022

**Proceedings under Section 230-232**

**IN THE MATTER OF:**
Power Build Pvt Ltd **.....Applicant**

**Order delivered on: 17/05/2023**

**Coram:**
Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

**PRESENT:**
For the Applicant :

**ORDER**

The case is fixed for the pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD- -SD-

**KAUSHALENDRA KUMAR SINGH**
**MEMBER (TECHNICAL)**

**SHAMMI KHAN**
**MEMBER (JUDICIAL)**

**NATIONAL COMPANY LAW TRIBUNAL**
**AHMEDABAD**
**DIVISION BENCH**
**COURT-1**

C.P.(CAA)47/230-232/2022
in
CA(CAA) No.39/230-232/2022

[Under Sections 232 read with Section 230 & 234 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 and Rules framed thereunder ]

Scheme of Amalgamation

Between

Power Build Transmission International Limited (Mauritius)
(Transferor Company)

With

Power Build Private Limited
(Transferee Company)

And

Their respective Shareholders and Creditors

In the matter of:

**Power Build Private Limited**
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office situated at
Anand-Sojitra Road,
Vallabh Vidyanagar - 388 120,
Gujarat

....Petitioner Company/
Transferee Company

Order Pronounced on: 17.05.2023

**Coram: Shammi Khan-Member (Judicial)**
**Kaushalendra Kumar Singh-Member(Technical)**

Appearance:
Mr. Ravi Pahwa, Advocate on behalf of Thakkar & Pahwa, Advocates, for the Petitioner Company.

**ORDER**

1. The present petition has been filed by Petitioner Company under Sections 230-232 read with Section 234 of the Companies Act, 2013 read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking approval of the Scheme of Amalgamation of Power Build Transmission International Limited (Mauritius) (Transferor Company) into Power Build Private Limited (Transferee Company) and their respective shareholders and creditors, with effect from 1st April 2022, being the Appointed Date as mentioned in the Scheme.

2. Affidavits in support of the above petition has been sworn by Mr. Kamleshbhai Dhirubhai Patel on behalf of the Petitioner Company and the same is annexed with the application. The above-named authorized representatives for the Petitioner Company has been authorized vide Board Resolution dated 7.4.2022 of the Petitioner Company.

3. The Petitioner Company had filed an Application before this Tribunal being CA (CAA) No. 39/NCLT/AHM/2022 inter alia seeking dispensation of meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors of Petitioner Company.

4. Vide an order dated 4.7.2022 made in CA (CAA) No.39/NCLT/AHM/2022, this Tribunal dispensed with the holding

and convening of meetings of the Equity Shareholders, Secured creditors and Unsecured creditors of the Petitioner Company. This Tribunal further directed the Petitioner Company to serve Notice of the Scheme in compliance with Sec. 230 (5) of the Companies Act, 2013 in the Form 'CAA-3' along with disclosures mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western Region; (ii) the Registrar of Companies; (iii) the Reserve Bank of India and (iv) concerned Income-Tax Authority stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by the Tribunal within the stipulated period of 30 days, it should be presumed that the authorities have no representation to make.

5. In compliance of the order dated 4.7.2022 made by this Tribunal in CA (CAA) No.39/NCLT/AHM/2022, the Petitioner Company has served notices to the Central Government through the Regional Director, North Western Region; (ii) the Registrar of Companies; (iii) the Reserve Bank of India and (iv) concerned Income-Tax Authority. The Petitioner Company has also filed affidavit confirming service of notice on the aforesaid statutory authorities.

6. The Petitioner Company thereafter has filed the present petition being CP (CAA) 47 of 2022 before this Tribunal seeking sanction of the Scheme of Amalgamation.

7. This Tribunal by order dated 27.07.2022, admitted the petition and directed issuance of notice hearing be advertised in English daily "Financial Express" and translation thereof in Vernacular / Gujarati in "Financial Express", having wide circulation in the

Ahmedabad, not less than ten days before the date fixed for hearing, calling for their objections, if any, on or before the date of hearing. This Tribunal also directed to issue notice to Regional Director, Registrar of Companies and the Income Tax informing the date of hearing.

8. Pursuant to the aforesaid order dated 27.07.2022 passed by this Tribunal, the Petitioner Company filed affidavit of service with this Tribunal submitting the proof of service of publication and also proof of issuance of notice to the Regional Director, Registrar of Companies and Income Tax Authority.

9. The Regional Director, North Western Region, MCA to whom notice was issued has filed his representation dated 23rd August 2022 before this Tribunal. The report of the Registrar of Companies, Ahmedabad dated 16th August 2022 is annexed to the Regional Director's Report.

10. In response to the representation made by the Regional Director (RD) and Registrar of Companies (RoC), the Petitioner Company has filed an affidavit dated 30th August 2022 giving their response to the observations of the Regional Director as briefly given hereunder:-

i. With regard to observation contained in paragraph 2(c) of the RD Report, it is submitted that the Authorised Share Capital of the Petitioner Company is Rs. 30,00,00,000. However, inadvertently, the Petitioner Company has mentioned the authorised share capital as Rs. 25,00,00,000 in the financial statements and the Scheme of Arrangement. The Petitioner Company has produced copy of Form MGT-7 for FY 2021-22 to substantiate that

the Authorised Share Capital of the Petitioner Company is Rs. 30,00,00,000/-.

ii. With regard to observation contained in paragraph 2(e) of the RD Report, it is submitted that the stipulations contained in Reserve Bank of India (RBI) Guidelines are duly complied with by the Petitioner Company. Under the Scheme, there are no shares which are allotted by the Petitioner Company to the shareholders of the Transferor Company (considering that Petitioner Company is the sole shareholder of the Transferor Company). The Scheme is in compliance with the Foreign Exchange Management (Cross Border Merger) Regulations, 2018 dated 20.03.2018. As per Rule 9 of the Foreign Exchange Management (Cross Border Merger) Regulations, 2018 read with Rule 25A of the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016, the compliance shall be treated as deemed approval of the RBI. A certificate to the said extent of the Petitioner Company is already produced on record of Company Application;

iii. With regard to observation contained in paragraph 2(f) of the RD Report, it is submitted that the Transferor Company has complied with the provisions of applicable Act/Rules/Regulation of law of Republic of Mauritius and undertakes to continue to comply with the same even in future;

iv. With regard to the observation contained in Para 2(g), (h) and (i) which are in relation to report of Registrar of Companies dated 16.8.2022 is concerned, it is submitted that as per the said report, there are no complaint against the Petitioner Company and also there is no complaint/ representation against the Scheme of Amalgamation of the Companies. Without prejudice, it is submitted that

i. So far as the observation contained in Para 14(1) and (3) of the RoC Report is concerned, the same is already dealt with hereinabove in this affidavit.

ii. So far as observation contained in Para 14(4) of the RoC Report with respect to preservation of books of accounts, papers and records of Transferor Company, it is submitted that the Transferee Company shall comply with provisions of section 239 of Companies Act, 2013.

iii. So far as observations contained in Para 14(2), 14(5) and 14(8) of the RoC Report are concerned, it is submitted that the same are matter of record.

iv. So far as observation contained in Para 14(6) of the RoC Report with respect to payment of stamp duty is concerned, it is submitted that there are no immovable assets in the Transferor Company and as such, there is no question of payment of any stamp duty. Without prejudice, should there be any adjudication for payment of stamp duty, the

Petitioner Undertakes to pay the same to the extent directed.

v. So far as observation contained in Para 14(7) of the RoC Report is concerned, it is submitted that the Petitioner Company shall file the certified copy of order sanctioning the scheme with Registrar of Companies within 30 days from date of passing order.

vi. With regard to observation contained in paragraph 2(j) of the RD Report, it is submitted that the Petitioner Transferee Company shall pay the requisite legal fees/ cost to the Central Government as may be directed by this Tribunal.

11. Income Tax Authority concerned has given its no objection to the Scheme with this Tribunal.

12. The Petitioner Company has stated in the Petition that no inspection or investigation has been instituted or is pending against the Petitioner Company under the provisions of the Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with the law, against the concerned persons, directors and officials of the Petitioner Company. The Petitioner Company has also placed on record certificate cum declaration of the Managing Directors/ Whole Time Directors and Company Secretary ensuring compliance with Foreign Exchange Management (Cross Border Merger) Regulations, 2018.

13. In compliance with the proviso to clause (e) of sub-section (7) of Section 230 of the Companies Act, 2013, certificate from the statutory auditors of the Petitioner Company dated 7th April 2022 is placed on record confirming that the accounting treatment as proposed under the Scheme is in conformity with the applicable Accounting Standards prescribed under section 133 of the Companies Act, 2013

14. Mr. Navin Pahwa, Senior Advocate along with Mr. Ravi Pahwa for M/s. Thakkar & Pahwa, Advocates appeared for the petitioner company time to time.

15. This matter was heard and reserved for orders. It was re-opened for clarification vide order dated 13.2.2023. This Tribunal directed the petitioner company to clarify certain details about the Transferor Company i.e. Power Build Transmission International Limited (Mauritius). This Bench directed the petitioner company to place on record the certificate of incorporation of the Transferor Company. This Bench also directed the petitioner company to clarify the relevant notification under the Mauritius Law regarding the present Scheme of Amalgamation. This Bench further directed the petitioner company to place on record the latest Financial Statements of the Transferor Company.

16. In pursuance to order dated 13.2.2023, the petitioner company filed affidavit dated 24.2.2023 clarifying all the aspects. The petitioner company placed on record the certificate of incorporation of the Transferor Company and accordingly the Transferor Company incorporated on 30.09.2010. The Learned Senior Counsel Mr. Navin Pahwa submitted that as per the Mauritius Companies Act, once

this Tribunal approves the Scheme, that order would be placed before the Registrar of Companies, Mauritius and then only, the Scheme would be effected. The relevant part of the notification under the Mauritius Law regarding the Scheme of Amalgamation, as submitted by the Learned Senior Counsel, is reproduced hereunder :-

> *4* ***Merger or consolidation with company incorporated outside Mauritius***
>
> *(1) One or more "Authorized Companies"; may merge or consolidate with one or more companies incorporated under the laws of jurisdictions other than that of Mauritius in accordance with paragraphs (2) to (4), including where one of the constituent companies is a parent company and the other constituent companies are subsidiary companies, where the merger or consolidation is permitted by the laws of the jurisdiction in which the companies incorporated outside Mauritius are incorporated.*
>
> *(2) In respect of a merger or consolidation under this paragraph-*
>
> *(a) "an Authorized Company"; shall comply with the provisions of this paragraph relating to the merger or consolidation, as the case may be, of companies incorporated under this Act, and a company incorporated under the laws of a jurisdiction other than that of Mauritius shall comply with the laws of that jurisdiction; and*
>
> *Amended Act no.11 of 2018, Government Gazette No.71 of 9 August 2018*
>
> *(b) where the surviving company or the consolidated company is to be incorporated under the laws of a jurisdiction other than that of Mauritius, it shall submit to the Registrar-*
>
> *(i) an agreement that a service of process may be effected on it in Mauritius in respect of proceedings for the enforcement of any claim, debt, liability or obligation of a constituent company incorporated under this Act or in respect of proceedings for the enforcement of the rights of a dissenting member of a constituent company incorporated under this Act*

*against the surviving company or the consolidated company;*

*(ii) an irrevocable appointment of the registered agent as its agent to accept service of process in proceedings referred to is subparagraph (i);*

*Amended GN 139 of 2011*

*(iii) an agreement that it shall promptly pay to the dissenting members of a constituent company incorporated under this Act the amount, if any, to which they are entitled under this Act with respect to the rights of dissenting members; and*

*(iv) a certificate of merger or consolidation issued by the appropriate authority of the foreign jurisdiction where it is incorporated; or, if no certificate of merger is issued by the appropriate authority of the foreign jurisdiction, such evidence of the merger or consolidation as the Registrar considers acceptable.*

Further, in compliance of order dated 13.2.2023, the latest financial statements of the Transferor Company is also placed on record.

17. In view of the change of constitution of Bench, we heard the matter afresh. Mr. Ravi Pahwa, the Ld. Counsel for the Petitioner Company advanced his arguments. On the basis of above facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 as well as Section 234 of the Companies Act 2013 are satisfied by the Petitioner Company. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result, the Company Petition No. CP (CAA) No. 47 of 2022 is allowed. The Scheme envisaging amalgamation of Power Build Transmission International Limited

(Mauritius) (Transferor Company) into Power Build Private Limited (Transferee Company) is hereby approved subject to the compliances required under the Mauritius Law as regard to Transferor Company. It is declared that the said sanctioned scheme shall be binding on the Petitioner Company and their shareholders, creditors and all concerned under the scheme.

18. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioner.

19. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

20. This Tribunal orders as under: -

(a) The Scheme of Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Company and their Shareholders and Creditors and all concerned under the Scheme. The sanction is, however, subject to the compliances to be made as regards to merger of Transferor Company (which is situated in Mauritius) in accordance with the Mauritius Companies Act.

(b) The entire share capital of the Transferor Company is held by Transferee Company. Hence, upon the scheme becoming effective, all shares held by the Transferee Company in the share capital of the Transferor Company as on the Effective Date shall stand cancelled, without any further act or deed, upon this scheme becoming effective. In lieu thereof, no allotment of any new shares or any payment shall be made to any person whatsoever pursuant to the scheme of amalgamation.

(c) The Petitioner Company shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and would also make compliances as per the relevant notification under the Mauritius Companies Act as regards to the Transferor Company situated within the foreign jurisdiction and submit the relevant documents in the office of Registrar of Companies.

(d) All concerned Authorities to act on the copy of this order along with the Scheme authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

(e) The Petitioner Company is further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of

the Act.

(f) The legal fees and expenses of the office of the Regional Director are quantified at Rs.15,000/- in respect of the Petitioner Company. The said fees to the Regional Director shall be paid by the Transferee Company.

(g) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

21. The Company Petition CP (CAA) No.47 of 2022 in CA (CAA) No. 39 of 2022 is disposed of. No order as to costs.

-SD-

**KAUSHALENDRA KUMAR SINGH**
**MEMBER (TECHNICAL)**

-SD-

**SHAMMI KHAN**
**MEMBER (JUDICIAL)**

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Annexure- E

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**SCHEME OF AMALGAMATION**

**OF**

**POWER BUILD TRANSMISSION INTERNATIONAL LIMITED (MAURITIUS)**

**("Transferor Company" OR "PBTIL")**

**WITH**

**POWER BUILD PRIVATE LIMITED ("Transferee Company" OR "PBPL")**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**UNDER SECTION 230 AND 232 READ WITH SECTION 234 AND OTHER RELEVANT PROVISIONS OF THE COMPANIES ACT, 2013**

## PREAMBLE

This Scheme ('the Scheme') more particularly defined in Clause 1.12 is presented under Sections 230 and 232 read with Section 234 and other relevant provisions of the Companies Act, 2013 for amalgamation of Power Build Transmission International Limited with Power Build Private Limited and for matters consequential, supplemental and or otherwise integrally connected therewith. It is in the nature of Inbound Cross Border merger of a Wholly Owned Subsidiary based in Mauritius with the Parent Company based in India.

## (A) DESCRIPTION OF THE COMPANIES

a. Power Build Transmission International Limited (hereinafter referred as "the Transferor Company" or "PBTIL") is a private company incorporated on 30th day September, 2010 with limited liability by shares under the Mauritius Companies Act, 2001 in the Republic of Mauritius and having its registered office at 1st Floor, Felix House, 24 Dr. Joseph Riviere Street, Port Louis, Mauritius. The Transferor Company is a wholly owned subsidiary of Power Build Private Limited wherein its entire issued and paid up share capital is held by Power Build Private Limited and the principal activity of PBTIL is to act as investment holding company..

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b. Power Build Private Limited (hereinafter referred as "the Transferee Company' or "PBPL") is a private limited company incorporated under the provisions of the Companies Act, 1956 in the State of Gujarat and having its Registered Office at Anand-Sojitra Road, Vallabh Vidyanagar - 388 120, Gujarat. CIN of the said company is U32201GJ1972PTC002065.The Transferee Company was originally incorporated on 15th day of April, 1972 as a limited company under the name and style of "Power Build Limited" as per the certificate of registration issued by Registrar of Companies, Gujarat. Subsequently, the company was converted into private limited company and accordingly the name was changed to Power Build Private Limited with effect from 24th day of November, 2014. The Transferee Company is primarily engaged in the business of manufacturing of various types of geared motors, gear reducers, helical and spur gears and worm gears.

**(B) RATIONALE OF THE SCHEME**

The key objectives of the amalgamation are as follows:

a. Rationalizing the foreign subsidiary companies in the group to ensure optimized legal entity structure more aligned with the business by reducing the number of legal entities and reorganizing the legal entities in the group structure so as to obtain significant cost savings and/or simplification benefits;

b. Significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried out by the Transferor Company and the Transferee Company;

c. Elimination of administrative functions and multiple record-keeping, thus resulting in reduced expenditure; and

d. The amalgamation pursuant to this Scheme will create a focused platform for future growth of the Transferee Company.

e. This Scheme is presented under Sections 230 and Section 232 read with Section 234 and other applicable provisions of the Act and Applicable Laws in Mauritius, for amalgamation of the Transferor Company with the Transferee Company.

f. Accordingly, this Scheme provides for the amalgamation of the Transferor Company with the Transferee Company.

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**(C) Parts of the scheme:**

The Scheme is divided into following parts: 194

| | |
|---|---|
| **PART A** | Deals with definitions and share capital |
| **PART B** | Deals with amalgamation of Transferor Company with the Transferee Company |
| **PART C** | Deals with general terms and conditions |

## PART A- DEFINITION AND SHARE CAPITAL

### 1. DEFINITIONS

In this scheme, unless repugnant to the meaning or context thereof, the following expression shall have the meaning mentioned herein below:

1.1 **"Act" or "the Act"** means the Companies Act, 2013 and shall include any statutory modifications or amendments thereof for the time being in force and shall also include the provision of the Companies Act, 1956, to the extent corresponding provision in the Companies Act, 2013 has not been notified. The same will be applicable to the Transferee Company only.

1.2 **"Applicable Law(s)"** means any statue, notification, bye laws, rules, regulations, guidelines, rule or common law, policy, code, directives, ordinance, schemes, notices, orders or instructions law enacted or issued or sanctioned by any Appropriate Authority including any modification or re-enactment thereof for the time being in force.

1.3 **"Appointed Date"** means 1st April 2022.

1.4 **"Appropriate Authority"** means any governmental, statutory, regulatory, departmental or public body or authority of the Relevant Jurisdiction, including Registrar of Companies, courts of Mauritius and India in each case and the Tribunal in relation to India and relevant competent authorities in relation to Mauritius.

1.5 **"Board of Directors"** means the Board of Directors of Power Build Transmission International Limited, Mauritius and/or Power Build Private Limited, as the context may require and includes committees of

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the Board (if any) constituted for the implementation of this Scheme or authorized officials(s).

1.6 **"Effective Date"** means last of the dates on which all the conditions, matters and filings specified in Clause 16 of the Scheme are fulfilled.

References in this Scheme to the date of "coming into effect of this Scheme" or "upon the Scheme being effective" shall mean the Effective Date.

1.7 **"Mauritius Companies Act"** means the Companies Act, 2001 of Mauritius or any statutory modification or re-enactment thereof for the time being in force. The same will be applicable to Transferor Company.

1.8 **"Power Build Private Limited" or "Transferee Company"** means Power Build Private Limited, a company incorporated under the Act and having its registered office at Anand - Sojitra Road, Vallabh Vidyanagar - 388120.

1.9 **"Power Build Transmission International Limited" or "Transferor Company"** means Power Build Transmission International Limited means a private company incorporated under the Mauritius Companies Act 2001 in the Republic of Mauritius and having its registered office at 1st Floor, Felix House, 24 Dr. Joseph Riviere Street, Port Louis, Mauritius.

1.10 **"Relevant Jurisdiction"** means the territories of the Republic of India and Mauritius.

1.11 **"Scheme" or "Scheme of Amalgamation" or "the Scheme" or "this Scheme"** means this Scheme of Amalgamation in its present form or with any modification(s) as approved or imposed or directed by the Tribunal.

1.12 **"Tribunal"** means the National Company Law Tribunal, Bench at Ahmedabad and shall include, if applicable, such other forum or authority as may be vested with the powers of National Company Law Tribunal under the Act.

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1.13 **"Undertaking"** means all business units, assets, properties, and liabilities of whatsoever nature and kind, and wherever situated, of the Transferor Company to be transferred to the Transferee Company, as a going concern, and shall include without limitation:

a) undertakings, estates, duties and obligations, investments, properties and assets (whether movable or immovable, tangible or intangible, real or personal, corporeal or incorporeal of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and/or in the control of or vested in or granted in favour of or enjoyed by the Transferor Company) such as intellectual rights, licenses, permits, quotas, approvals, registrations, leases, permissions, investments, copyrights, patents, patents rights, designs, brands, no objection certificates, trademarks, trade names, contracts, agreements, consents, approvals or powers of every kind, nature and description whatsoever of the Transferor Company.

b) all debts, borrowings and liabilities, if any, whether present, future or contingent, whether secured or unsecured, of the Transferor Company.

c) All statutory permits, licenses, registration, quotas, allotment, permissions, benefits, advantages, approvals or consents, certificates, clearances, authorities (including for the operations of bank accounts), power of attorneys to carry on the operations of the Transferor Company, all statutory and regulatory permissions or other licenses and approvals or consents, incentives, special status and other benefits or privileges enjoyed, granted by any Government body, local authority or by any other person, or availed of by the Transferor Company.

d) all books, records, files, papers, engineering and process information, computer programs, software licenses (whether proprietary or otherwise), drawings, manuals, data, catalogues and other records whether in physical or electronic form.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning

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ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modifications or re-enactment thereof from time to time.

## 2. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Tribunal or any other Appropriate Authority shall be effective from the Appointed Date and shall be operative from the Effective Date.

## 3. SHARE CAPITAL

3.1 The Share Capital of the Transferor Company as at 31st December 2021 was as follows:

| Particulars | Amount in GBP |
|---|---|
| **Issued, Subscribed and Paid-up capital** | |
| 35,96,831 ordinary Shares of GBP 1 each fully paid up | 35,96,831 |
| **Total** | **35,96,831** |

Subsequent to the above date and till the date of the Scheme being approved by the Board of Directors of the Transferor Company, there has been no change in the issued, subscribed and paid up share capital of the Transferor Company. All the Ordinary Shares issued by the Transferor Company are held by the Transferee Company. Accordingly, the Transferor Company is a wholly owned subsidiary of the Transferee Company.

3.2 The share capital of the Transferee Company as at 31st December 2021 is as under:

| Particulars | Amount in INR |
|---|---|
| **Authorised Capital** | |
| 2,50,00,000 Equity Shares of Rs. 10 each | 25,00,00,000 |
| **Total** | **25,00,00,000** |
| **Issued, Subscribed and Paid-up** | |
| 23,59,742 Equity Shares of Rs. 10 each fully paid up | 2,35,97,000 |

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POWER BUILD

| | |
|---|---|
| **Total** | **2,35,97,000** |

Subsequent to the above date and till the date of the Scheme being approved by the Board of Directors of the Transferee Company, there has been no change in the issued, subscribed and paid up share capital of the Transferee Company.

**PART B - AMALGAMATION OF THE TRANSFEROR COMPANY WITH THE TRANSFEREE COMPANY**

**4. TRANSFER AND VESTING**

4.1 Upon coming into effect of this Scheme and with effect from the Appointed Date, the Transferor Company shall stand amalgamated with the Transferee Company, as provided in this Scheme.

4.1.1 Accordingly, entire business including the Undertaking of the Transferor Company as a going concern shall, under the provisions of Sections 230 and 232 read with Section 234 and other applicable provisions of the Act and pursuant to the order(s) of the Tribunal sanctioning this Scheme and upon compliance with the process specified in Clause 8 hereof and without any further act or deed, but subject to the charges affecting the same as on the Effective Date, be transferred and/or deemed to be transferred to and vested in the Transferee Company on the same terms and conditions, so as to become the undertakings, estates, duties and obligations, properties and assets (whether movable or immovable, tangible or intangible, real or personal, corporeal or incorporeal of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and/or in the control of or vested in or granted in favour of or enjoyed by the Transferor Company) such as intellectual rights, licenses, permits, quotas, approvals, registrations, leases, permissions, investments, copyrights, patents, patents rights, designs, brands, no objection certificates, trademarks, trade names, contracts, agreements, consents, approvals or powers of every kind, nature and description whatsoever, of the Transferee Company.

4.1.2 All statutory licences, permissions, approvals or consents, certificates, clearances, authorities (including for the operations of

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bank accounts), power of attorneys to carry on the operations of the Transferor Company shall stand transferred to and vested in the Transferee Company without any further act or deed and shall be appropriately mutated by the statutory authorities concerned in favour of the Transferee Company upon the vesting and transfer of the Transferor Company pursuant to this Scheme. The benefit of all statutory and regulatory permissions or other licenses and approvals or consents shall vest in and become available to the Transferee Company pursuant to this Scheme. In so far as any incentives, special status and other benefits or privileges enjoyed, granted by any Government body, local authority or by any other person, or availed of by the Transferor Company, as the case may be, are concerned, the same shall vest with and be available to the Transferee Company on the same terms and conditions.

4.2 All the assets acquired by or belonging to the Transferor Company and all the liabilities, if any, incurred by the Transferor Company after the Appointed Date and prior to the Effective Date shall also stand transferred to and vested in the Transferee company in the same manner as specified in Clause 4.1 upon coming into effect of the Scheme.

4.3 Any existing encumbrances over the assets and properties of the Transferee Company or any part thereof which relate to the liabilities and obligations of the Transferee Company prior to the Effective Date shall continue to relate only to such assets and properties of the Transferee Company and shall not extend or attach to any of the assets and properties of the Transferor Company transferred to and vested in the Transferee Company by virtue of this Scheme.

4.4 All taxes of any nature, duties, cess or any other like payments or deductions made by the Transferor company to any Appropriate Authorities, relating to the period after the Appointed Date and upto the Effective Date shall be deemed to have been on account of and on behalf of the Transferee Company and the relevant Appropriate Authorities shall be bound to transfer to the account of and give credit for the same to the Transferee Company upon the coming into effect of this Scheme and upon relevant proof and documents being provided to the said Appropriate Authorities.




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## 5. APPLICABILITY OF THE PROVISIONS OF THE INCOME-TAX ACT

5.1 The Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the Income-tax Act, 1961. If any term(s)' or provision(s) of the Scheme are found or interpreted to be inconsistent with the provisions of the said Section at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said Section shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the Income-tax Act, 1961. Such modifications will, however, not affect other parts of the Scheme, except to the extent required to give effect to the Scheme.

5.2 Upon the Scheme becoming effective, the Transferee Company is expressly permitted to revise its financial statements and returns along with prescribed forms, filings and annexures under the Income-tax Act, 1961 (including for Minimum Alternate Tax purposes and tax benefits), goods and service tax law and other tax laws and to claim refunds and / or credits for taxes paid (including minimum alternate tax), and to claim tax benefits under the Income-tax Act, 1961 etc. and for matters incidental thereto, if required to give effect to the provisions of the Scheme.

5.3 Any refund under the tax laws received by or due to the Transferor Company consequent to any assessments made on the Transferor Company subsequent to the Appointed Date and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall belong to and be received by the Transferee Company.

5.4 Any transaction entered into by the Transferor Company between the Appointed Date and the Effective Date will not be regarded as noncompliant of withholding tax/tax deduction at source obligation under the Income Tax Act, 1961 or Goods and Service Tax obligation only on the ground that, on the sanction of the scheme, the transactions are regarded as having been carried out by the Transferee Company.

5.5 TREATMENT OF TAXES PAID BY THE TRANSFEROR COMPANY

All taxes, levies, cess, etc. (in relation to income of the Transferor Company) that might have been paid by the Transferor Company (after

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the Appointed Date) during the period when the merger has not become effective for any tax liability that arises after the Appointed Date shall be deemed to be tax paid by the Transferee Company and credit in respect thereof shall be given to the Transferee Company accordingly.

**6. CONSIDERATION**

The entire share capital of the Transferor Company is held by the Transferee Company. Hence, upon the Scheme becoming effective, all shares held by the Transferee Company in the share capital of the Transferor Company as on the Effective Date shall stand cancelled, without any further act or deed, upon this Scheme becoming effective. In lieu thereof, no allotment of any new shares or any payment shall be made to any person whatsoever pursuant to this scheme of amalgamation. The said cancellation of existing share capital of the Transferor Company shall be effected as an integral part of this Scheme.

**7. ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY**

7.1 The Transferee Company shall account for the amalgamation in its books in accordance with Accounting Standards prescribed under section 133 as may be applicable along with generally accepted accounting principles adopted in India.

7.2 The Transferee Company, shall upon the Scheme coming into effect, record the assets and liabilities, if any, of the Transferor Company vested in it pursuant to this Scheme, at the respective carrying value thereof and in the same form as appearing in the books of the Transferor Company.

7.3 The identity of the reserves or any item of equity of the Transferor Company as appearing in the relevant Financial Statements of the Transferee Company shall be preserved.

7.4 Pursuant to the amalgamation of the Transferor Company with the Transferee Company, the inter-company balances between the Transferee Company and the Transferor Company, if any appearing in the books of. the Transferee Company shall stand cancelled.

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7.5 The value of investments held by the Transferee Company in the Transferor Company shall stand cancelled pursuant to amalgamation.

7.6 In case of any difference in accounting policy between Transferor Company and Transferee Company, the accounting policies followed by the Transferee Company will prevail and the difference shall be quantified and adjusted in the reserves to ensure that the financial statements of Transferor Company reflect the financial position on the basis of consistent accounting policy.

7.7 In addition, the Transferee Company shall pass such accounting entries, as may be necessary, in connection with the Scheme, to comply with any of the applicable accounting standards and generally accepted accounting principles adopted in India.

**8. PROCEDURE RELATING TO THE TRANSFEROR COMPANY UNDER THE LAWS OF MAURITIUS:**

8.1 The Transferor Company is incorporated under the Mauritius Companies Act as a Category 1 Global Business Licensed company in Mauritius pursuant to the Financial, Services Act, 2007 as amended and to be converted to an Authorized Company.

8.2 In terms of Mauritius law, a company licensed as Authorized Company can merge with one or more companies incorporated under the laws of a jurisdiction other than that of Mauritius where the merger is permitted by the laws of such jurisdiction. Accordingly, the Transferor Company has been converted into Authorized Company on 22nd March, 2022.

8.3 The Board of Directors of the Transferor Company has passed a resolution on 07.04.2022 approving the scheme.

8.4 In terms of Paragraph 4 (2) (a) of Part II of the Fourteenth Schedule to the Mauritius Companies Act, the Transferor Company is required to comply with the laws of Mauritius and the Transferee Company will have to comply with the laws of India regarding the amalgamation of the Transferor Company with the Transferee Company.

8.5 In terms of Paragraph 4 (2) (b) of Part II of the Fourteenth Schedule to the Mauritius Companies Act, the Transferee Company, being incorporated under the laws of a jurisdiction other than that of

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Mauritius, must submit the following to the Registrar of Companies, Mauritius in relation to the merger of the Transferor Company with the Transferee Company:

(a) An agreement that a service of process may be effected on it in Mauritius in respect of proceedings for the enforcement of any claim, debt, liability or obligation, if any, of a constituent company (being the Transferor Company) incorporated under the Mauritius Companies Act or in respect of proceedings for the enforcement of the rights of a dissenting member of a constituent company incorporated under the Mauritius Companies Act against the surviving company (being the Transferee Company);

(b) An irrevocable appointment of the Registrar of Companies of the Transferor Company as its agent to accept service of process in proceedings referred to in sub clause (a) above;

(c) An agreement that the Transferee Company shall promptly pay to the dissenting members, if any, of a constituent company (being the Transferor Company) incorporated under the Mauritius Companies Act, the amount, if any, to which they are entitled under the Mauritius Companies Act, with respect to the rights of dissenting members. However, there is no dissenting member since the Scheme has been approved by the sole shareholder of the Transferor Company and therefore this provision does not apply; and

(d) A certificate of merger or consolidation issued by the appropriate authority of the foreign jurisdiction (i.e. Order passed by the Tribunal approving the Scheme) where it is incorporated.

8.6 Based on the above and given that there is no dissenting member of any constituent company (being the Transferor Company) incorporated under the Mauritius Companies Act, the Transferee Company will confirm in writing to the Registrar of Companies Mauritius that (a) there is no such dissenting member and (b) the Transferee Company shall irrevocably appoint the administrator of the Transferor Company. CKLB International Management Ltd. on behalf of the Transferee Company to accept service of process in respect of proceedings for enforcement of any claim, debt, liability or obligation of the Transferor Company, if any.

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8.7 In terms of Paragraph 4(3) of Part II of the Fourteenth Schedule to the Mauritius Companies Act, where the surviving company (being the Transferee Company) is incorporated under the laws of a jurisdiction other than that of Mauritius, the effect of the merger shall be as same in the case of amalgamation under Part XVI of the Mauritius Companies Act except in so far as the laws of the other jurisdiction, i.e. the laws of India, otherwise provide.

8.8 In terms of Paragraph 4(4) of Part II of the Fourteenth Schedule to the Mauritius Companies Act, since the surviving company (being the Transferee Company) is incorporated under the laws of a jurisdiction other than that of Mauritius, the amalgamation will be effective as provided for by the laws of that jurisdiction, i.e. the laws of India.

8.9 The Transferor Company shall be required to file certain documents including those set out in Paragraph 4(2)(b) of Part II of the Fourteenth Schedule to the Mauritius Companies Act with the Registrar of Companies, Mauritius along with this Scheme and the corporate resolution of the Transferee Company or relevant extract thereof and the Transferor Company will be struck off the register maintained by the Registrar of Companies, Mauritius effective the date of the merger under the laws of India without the need for winding up.

## PART C - GENERAL TERMS AND CONDITIONS APPLICABLE TO THE SCHEME

### 9. CONDUCT OF BUSINESS TILL EFFECTIVE DATE

9.1 The Transferor Company shall carry on and shall be deemed to have carried on all its business and activities as hitherto and shall hold and stand possessed of and shall be deemed to have held and stood possessed of all the assets and liabilities, if any of the Transferor Company on account of and in trust for the Transferee Company;

9.2 All profits and income accruing or arising to the Transferor Company, and losses and expenditure arising or incurred by them (including taxes, if any, accruing or paid in relation to any profits or income) shall, for all purposes, be treated as and be deemed to be the profits, income, losses or expenditure, as the case may be of the Transferee Company;

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9.3 Any of the rights, powers, authorities, privileges exercised by the Transferor Company shall be deemed to have been exercised by the Transferor Company for and on behalf of and in trust for and as agents of the Transferee Company. Similarly, any obligations, duties and commitments that have been undertaken or discharged by the Transferor Company shall be deemed to have been undertaken for and on behalf of and as an agent for the Transferee Company; and

9.4 The Transferor Company shall not delineate, charge, mortgage, encumber or otherwise deal with its assets or any part thereof without prior written consent of the Transferee Company.

**10. EMPLOYEES**

10.1 Upon the coming into effect of this Scheme, all employees, if any, of the Transferor Company as on the Effective Date shall become the employees of the Transferee Company on terms and conditions not less favourable than those on which they are agreed by the Transferor Company and without any interruption of or break in service as a result of the amalgamation of the Transferor Company with the Transferee Company. For the purpose of payment of any compensation, gratuity and other terminal benefits, past service of such employees with the Transferor Company and such benefits to which the employees are entitled in the Transferor Company shall also be taken into account and paid (as and when payable) by the Transferee Company.

10.2 The Board of Directors of each of the Transferor Company and the Transferee Company shall take such actions and execute such further documents as may be necessary or desirable for the purpose of giving effect to the permissions of this Clause.

**11. LEGAL PROCEEDINGS**

11.1 All legal proceedings of whatsoever nature by or against the Transferor Company pending and/or arising at the Appointed Date, as and from the Effective Date, shall be continued and enforced by or against the Transferee Company in the manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company as the case may be.

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11.2 After the Appointed Date, if any proceedings are taken against the Transferor Company in respect of the matters referred to in the sub-clause 11.1 above, the Transferor Company shall defend the same at the cost of the Transferee Company and the Transferee Company shall reimburse and indemnify the Transferor Company, including its directors, officers and administrative agent, against all liabilities and obligations incurred by the Transferor Company in respect thereof.

11.3 The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Company referred to in sub-clause 11.1 above, transferred into its name and to have the same continued, prosecuted and enforced by or against the Transferee Company to the exclusion of the Transferor Company.

**12. CONTRACTS, DEEDS, ETC.**

12.1 Upon this Scheme becoming effective, all contracts, deeds, bonds, agreements and other instruments, if any, of whatsoever nature and to which the Transferor Company is a party and subsisting or having effect on the Effective Date, shall be in full force and effect against or in favour of the Transferee Company, as the case may be and may be enforced by or against the Transferee Company as fully and effectually as if instead of the Transferor Company, the Transferee Company had been a party thereto from inception. The Transferee Company shall enter into and/or issue and/or execute deeds, writings or confirmations or enter into any arrangements, confirmations or novations, in order to give formal effect to the provisions of this Scheme. After the Effective Date, the Transferee Company shall be deemed to be authorised to execute any deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company to give effect to the provisions of this Scheme.

12.2 It is hereby clarified that by virtue of the provisions of the Scheme and pursuant to the order of the Tribunal sanctioning the Scheme, upon the Scheme coming into effect, all rights, services, Obligations, liabilities, responsibilities undertaken by or in favour of the Transferor Company under any contractual arrangements shall automatically stand

12.3 Without prejudice to the above, the Transferee Company shall, if so desirable or required or become necessary, upon the coming into effect

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of this Scheme and with effect from the Appointed Date, enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite arrangements, to which the Transferor Company will, if necessary, also be party in order to give formal effect to the provisions of this Scheme and to the extent that the Transferor Company are required prior to the Effective Date to join in such deeds, writings or confirmations, the Transferee Company shall be entitled to act for and on behalf of and in the name of the Transferor Company, as the case may be. Further, the Transferee Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company to give effect to the provisions of this Scheme.

12.4 Without prejudice to the above, it is further clarified that with respect to approvals, , permissions, licenses, registrations, consents that may require amendment for the purpose of giving effect to this Scheme and to ensure that there is no change in the entitlements otherwise available to the Transferor Company in the absence of this Scheme, the Transferee Company shall be permitted to use the name and approvals, permissions, licenses, registrations, consents of the Transferor Company till such approvals, permissions, licenses, registrations, consents are so amended and updated, so as to enable the Transferee Company to continue to avail the entitlements otherwise available to the Transferor Company.

**13. SAVING OF CONCLUDED TRANSACTIONS**

13.1 The transfer and vesting of the assets, liabilities and obligations of the Transferor Company as per this Scheme and the continuance of the proceedings by or against the Transferee Company thereof shall not affect any transaction or proceedings already concluded by the Transferor Company on or before the Effective Date, to that end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company as acts deeds and things done and executed by and on behalf of the Transferee Company.

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**14. APPLICATIONS TO THE Tribunal**

14.1 The Transferee Company shall make applications/petitions under Sections 230 and Section 232 read with Section 234 and other applicable provisions of the Act to the Tribunal seeking orders for dispensing with or convening, holding and conducting the meetings of members and creditors and for an order sanctioning this Scheme of the Transferor Company with the Transferee Company and its shareholders and creditors.

14.2 The Transferor Company shall initiate and pursue all actions necessary under the local laws of their jurisdiction (i.e., Mauritius). The Transferor Company shall take all necessary steps for sanctioning of this Scheme and for their continuing as one company with the Transferee Company and apply for and obtain such other approvals, if any, required under the Applicable Laws.

**15. MODIFICATIONS OR AMENDMENTS TO THE SCHEME**

15.1 Subject to requisite approvals of the Tribunal and/ or the Appropriate Authorities (if applicable), the Transferor Company and the Transferee Company by their respective Board of Directors or such other person or persons, as the respective Board of Directors , may authorize, including any committee or sub-committee thereof, may consent to any modifications/amendments to the Scheme or to any conditions or limitations that the Tribunal or any other authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by the Tribunal or such other Appropriate Authorities (if applicable), whether in pursuance of a change in law or otherwise. The Transferor Company and the Transferee Company by their respective Board of Directors or such other person or persons, as the respective Board of Directors may authorize, including any committee or subcommittee thereof, shall be authorized to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith.

For the purpose of giving effect to this Scheme or to any modifications or amendments thereof or additions thereto, the delegate(s) of the

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Transferor Company and/or the Transferee Company may give and are hereby authorized to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties, in the same manner as if the same were specifically incorporated in this Scheme.

**16. CONDITIONALITYOF THE SCHEME**

16.1 This Scheme is and shall be conditional upon and subject to:

16.1.1 the requisite consents, approvals or permissions of any Appropriate Authorities from India and Mauritius.

16.1.2 the approval by the requisite majority of the shareholders and/or creditors (as may be required and/or to the extent not dispensed with by the Appropriate Authorities) of the Transferor Company and the Transferee Company, as required under Applicable Law.

16.1.3 the Scheme being sanctioned by the Tribunal in terms of Sections 230 and 232 read with Section 234 and/or all other relevant provisions of the Act.

16.1.4 the certified copy of the order of the Tribunal sanctioning the Scheme being filed with the Registrar of Companies, Gujarat by the Transferee Company;

16.1.5 compliance by the Transferor Company of all the necessary and applicable provisions of its Applicable Law (including without limitation, all necessary filings to be made under Applicable Laws of Mauritius).

16.1.6 the Transferee Company entering into agreements under Section 4 (2) (b) of Part II of the Fourteenth Schedule to the Mauritius Companies Act and appointing CKLB International Management Ltd as its agent to accept service of process, and the Registrar of Companies, Mauritius accepting the order passed by the Tribunal as sufficient evidence of the Scheme being sanctioned and consequently striking off the Transferor Company, in its records.

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16.2 This Scheme, although to come into operation from the Appointed Date, shall not become effective until the last of the following dates, namely:

16.2.1 That on which the last of the aforesaid consents, approvals, permissions, resolutions and orders as mentioned in Clause 16.1 shall be obtained or passed; or

16.2.2 That on which all necessary certified/ authenticated copies of orders under Sections 230 and Section 232 to read with Section 234 and other applicable provisions of the Act shall be duly filed with the Registrar of Companies, Gujarat at Ahmedabad/ Ministry of Corporate Affairs (MCA) by the Transferee Company.

16.3 The last of such dates shall be the "Effective Date" for the purpose of this Scheme.

**17. DISSOLUTION OF THE TRANSFEROR COMPANY**

On the Scheme becoming effective, the Transferor Company will be struck off the register maintained by the Registrar of Companies, Mauritius and shall stand dissolved without any further act or deed or without being wound-up.

**18. EFFECT OF NON-RECEIPT OF APPROVALS**

18.1 In the event of any of the said approvals or conditions referred to in Clause 16 above not being obtained and/ or complied with and/or satisfied and/or the Scheme not being sanctioned by the Tribunal and/or order or orders not being passed as aforesaid before such date as may be mutually agreed upon by the respective Board of Directors of the Transferor Company and the Transferee Company (who are empowered and authorized to agree to and extend the aforesaid period from time to time without any limitations in exercise of their powers through and by their respective delegate(s)), this Scheme shall stand revoked, cancelled and be of no effect, unless otherwise specifically decided by the Transferor Company and the Transferee Company. The Transferor Company and the Transferee Company shall, in such event, inter se bear and pay their respective costs, charges, expenses in connection with the Scheme.

18.2 In the event of revocation under Sub-Clause 18.1, no rights and liabilities whatsoever shall accrue to or be incurred inter se to the

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Transferor Company and the Transferee Company or their respective shareholders or creditors or employees or any other person save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or in accordance with the applicable laws and in such case, each company shall bear its own costs unless otherwise mutually agreed.

18.3 The Board of Directors of the Transferor Company and the Transferee Company shall be entitled to withdraw this Scheme prior to the Effective Date.

18.4 The Board of Directors of the Transferor Company and the Transferee Company shall be entitled to revoke, cancel and declare the Scheme of no effect if they are of the view that the coming into effect of the Scheme with effect from the Appointed Date could have adverse implications on the combined entity post-amalgamation.

18.5 If any part of this Scheme hereof is invalid, ruled illegal by any Tribunal, or unenforceable under present or future laws, then it is the intention of the Transferor Company and the Transferee Company that such part shall be severable from the remainder of the Scheme. Further, if the deletion of such part of this Scheme may cause this Scheme to become materially adverse to the Transferor Company and for the Transferee Company, then in such case the Transferor 'Company and for the Transferee Company shall attempt to bring about a modification in the Scheme, as will best preserve for the Transferor Company and the Transferee Company the benefits and obligations of the Scheme, including but not limited to such part.

**19. COSTS, CHARGES AND EXPENSES**

All costs, charges and expenses including stamp duty and registration fee of any deed, document, instrument or Tribunal's order including this Scheme or in relation to or in connection with negotiations leading upto the Scheme and of carrying out and implementing the terms and provisions of this Scheme and incidental to the completion of arrangement in pursuance of this Scheme shall be borne and paid by the Transferee Company.

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